

BEFORE THE ARBITRAL TRIBUNAL COMPRISING OF

THE SOLE ARBITRATOR

SENIOR ADVOCATE N.N.P. SARDESAI

AT PANAJI, GOA

In the matter of:

VIKRAM SHAH

... Claimant

V/s.

RIVA TRINDADE & 3 ORS.

... Respondents

REPLY ON BEHALF OF THE CLAIMANT

**TO THE APPLICATION DATED 12.06.2026 FOR AMENDMENT OF STATEMENT
OF DEFENSE FILED BY RESPONDENT NOS. 1, 2 AND 3**

MOST RESPECTFULLY SHOWETH:

1. That the Claimant has carefully perused the Application for Amendment of Statement of Defense (hereinafter referred to as "the said Application") filed by Respondent Nos. 1, 2 and 3 along with the draft amendment annexed thereto as Annexure A. The present Reply is being filed on behalf of the Claimant opposing the grant of any reliefs as prayed for in the said Application.
2. At the outset it is submitted that the application filed by the applicant u/s 17 is pending hearing. The arguments on behalf of the Applicant is over and after the arguments the matter is kept for arguments of the Respondent Nos. 1 to 3. It is submitted that therefore Recent application



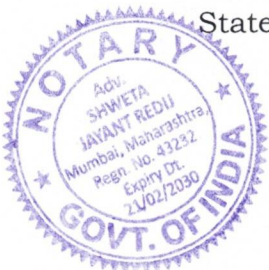
is nothing but an attempt on the part of the respondents to delay the hearing of application under section 17.

3. That the said Application is not maintainable in the eyes of law and deserves to be dismissed in limine with exemplary costs. The Application has been filed by the Respondents with the sole and mala fide intention of delaying the arbitral proceedings which have been pending before this Hon'ble Tribunal since the Order dated 07.08.2024 appointing the Arbitral Tribunal. The Respondents are adopting dilatory tactics to frustrate the object of expeditious adjudication under the Arbitration and Conciliation Act, 1996.
4. That Section 23(3) of the Arbitration and Conciliation Act, 1996 expressly provides that a party may amend or supplement its claim or defence during the course of arbitral proceedings "unless the arbitral tribunal considers it inappropriate to allow the amendment or supplement having regard to the delay in making it." The Hon'ble Tribunal is vested with wide discretion to reject amendments where there is unjustified delay, lack of bona fides, or where the amendment would cause prejudice or protract the proceedings. The present case squarely falls within the mischief contemplated by the said provision.
5. That there is no inexhaustible or absolute right to amend pleadings in arbitral proceedings. The permissibility of amendment is subject to scrutiny by the Tribunal, which may reject the same if it is belated, unexplained, mala fide or intended to delay the proceedings. The Hon'ble Delhi High Court in various judgments including H.S. Nag v. Asian Hotel



(North) Ltd. has emphasized that an arbitral tribunal has a bounding duty to ensure proceedings are held expeditiously and that no party indulges in dilatory tactics so as to defeat the mandate of law under Section 29A of the Act.

6. That the Respondents have miserably failed to offer any explanation, much less a satisfactory one, as to why the so-called "new facts" and documents, particularly the banking records and statements pertaining to transactions of the year 2014, could not be obtained, discovered or placed on record at the time of filing of the Statement of Defense or at any point of time during the last nearly two years since the constitution of this Tribunal. The vague plea that the records were "recently obtained" is self-serving, insufficient and does not constitute "due diligence" or "subsequent discovery despite reasonable efforts". Such unexplained and inordinate delay is fatal to the maintainability of the Application.
7. That the proposed amendments are not mere elaborations, clarifications or particularizations of existing defences. On the contrary, they seek to introduce an entirely new, alternative and inconsistent case, most notably the elaborate plea regarding the alleged independent "moiety holder" rights of Respondent No. 2 under the regime of communion of assets. This plea was always available to the Respondents from the very inception of the proceedings. Respondent No. 2 was fully aware of her marital status and the applicable property regime. The failure to plead the same in the original Statement of Defense, if it was a genuine defence, disentitles the



Respondents from seeking to introduce it by way of amendment at this belated stage. The amendment is clearly an afterthought.

8. That several of the proposed paragraphs in the draft amendment (including but not limited to paragraphs 43A, 43B, 43D, 51A, 53A, 53B, 53C, 83A and 83B) are in the nature of detailed evidence, lengthy arguments, legal submissions and inferences which have no place in pleadings. Pleadings are required to contain only material facts and not evidence or arguments. The Respondents are free to rely upon any documents (subject to proof and relevance) and raise all legal contentions, including those concerning title, juristic personality of the Articles of Association, effect of the Joint Venture Agreement, etc., in their written submissions, arguments and during cross-examination. There is absolutely no necessity to amend the Statement of Defense for this purpose.
9. That the so-called banking transactions and "refunds" detailed in the proposed paragraph 43A are hotly disputed by the Claimant. The Claimant has a complete and satisfactory answer to the same, which will demonstrate that the said transactions do not in any manner affect, diminish or extinguish the claims arising out of the Articles of Association or the investments made by the Claimant. The contents of the balance sheet and accounts relied upon by the Claimant are not self-serving as alleged; the allegations to the contrary are baseless. Permitting amendment at this stage would only provide an opportunity to the Respondents to complicate the record, introduce disputed questions of fact through pleadings, and protract the proceedings unnecessarily.



10. That the Claimant has already structured his entire case, evidence and strategy on the basis of the existing pleadings. The Claimant has also filed Affidavit in Evidence in related civil proceedings as referred to in the draft amendment. Allowing the proposed amendment at this stage would compel the Claimant to file a detailed additional statement/rejoinder, gather further evidence if necessary, and meet an entirely new case, causing serious prejudice, additional expense and inevitable delay. Such prejudice cannot be adequately compensated in monetary terms. The balance of convenience is overwhelmingly in favour of rejecting the Application.
11. That it is well-settled that amendment of pleadings is not a matter of right. The discretion must be exercised judiciously, keeping in mind: (a) the conduct of the party seeking amendment; (b) the stage of the proceedings; (c) whether the amendment is bona fide and necessary for determining the real questions in controversy; (d) whether it would cause prejudice to the opposite party which cannot be compensated; and (e) whether it is intended to delay or abuse the process. The Hon'ble Supreme Court in *Revajeetu Builders and Developers v. Narayanaswamy & Sons*, (2009) 10 SCC 84 has laid down the principles which have been consistently followed. Amendments which are mala fide, introduce a new inconsistent case, or are sought after inordinate unexplained delay, ought to be refused. The present Application fails on all these counts.
12. That the Respondents' conduct in suppressing material facts (as alleged by them against the Claimant) and now seeking to introduce new pleas based on documents allegedly recently obtained, while having had full



opportunity earlier, smacks of mala fides. The Application is nothing but an abuse of the process of this Hon'ble Tribunal. This Hon'ble Tribunal has the inherent jurisdiction and duty to prevent such abuse and ensure that arbitration does not degenerate into a never-ending process by permitting successive amendments on flimsy and belated grounds.

13. That refusal of the proposed amendment will not cause any injustice to the Respondents. All their contentions – whether factual or legal – concerning the effect of the Articles of Association, the status of Respondent No. 2, the banking transactions, the Deed of Sale, the Joint Venture Agreement, or the maintainability of claims, can be fully and effectively urged and considered by this Hon'ble Tribunal on the basis of existing pleadings, documents and evidence. Amendment of pleadings is not a prerequisite for raising such contentions.

14. That in view of the foregoing, the said Application is liable to be dismissed as not maintainable, being mala fide, belated, lacking in bona fides, and filed with the clear intention of delaying the proceedings.

15. It is, therefore, most respectfully prayed that this Hon'ble Tribunal may be graciously pleased to:

(a) Dismiss the Application for Amendment of Statement of Defense filed by Respondent Nos. 1, 2 and 3 as not maintainable in law and being an abuse of process of this Hon'ble Tribunal;

(b) Award costs of this Application to the Claimant;

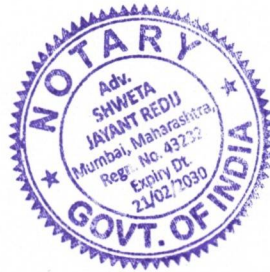


(c) Pass any other order or orders as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the present case.

AND FOR THIS ACT OF KINDNESS, THE CLAIMANT SHALL EVER PRAY.

Date: 07.07.2026

Place: Panaji, Goa



Advocate for the Claimant

Vikram Shah

VERIFICATION

I, Vikram, Shah Age About 76, Occ. Business, R/o:- 28 Capri 9 Manav Mandir Road, Mumbai 400006 do hereby state on solemn affirmation that whatever stated in the foregoing paragraphs No. 1 to 14 are the facts which are true and correct to my own knowledge and belief and I believe the same is to be true.

Solemnly Affirmed at Mumbai }

This 7th Day of July 2026 }

Before me

BEFORE ME

SHWETA JAYANT REDIJ
Advocate & Notary, Govt. of India
Flat No. 6, B Wing, Gemini Apartments,
Baf Hira Nagar, Behind Radha Krishna Hotel,
Near Malwani Fire Brigade, Off. Marve Road,
Malad (West), Mumbai - 95. Maharashtra
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ID / Aadhar / PAN / DL :
Seen Org. / POA / Board Resol.: